RESIDENTIAL TENANCY AGREEMENT

Agreement 03 — Conflicting termination clauses test case

TEST DATA NOTICE: This is a fictional synthetic agreement created solely for testing ClauseLens. It is not legal advice and must not be signed or used as a real contract.

PARTIES AND DATE

This Agreement is made on 20 October 2026 between Devika Shah (“Landlord”) and Kabir Sethi (“Tenant”) for Apartment 11C, Riverstone Towers, Sector 48, Gurugram, Haryana 122018. The names and address are fictional. The document is designed to test extraction when different clauses appear to conflict.

1. PROPERTY AND PURPOSE

The Landlord lets the Tenant occupy Apartment 11C, Riverstone Towers, a two-bedroom residential apartment with one parking bay. The Premises must be used as a private residence. The Tenant shall comply with reasonable building rules and shall not cause excessive noise, block common passages, or store hazardous materials in the Premises.

2. TERM

The tenancy begins on 1 November 2026 for an initial term of eleven months, ending on 30 September 2027. Any renewal must be signed by both Parties. A discussion about renewal or acceptance of a payment does not by itself amend the written term, subject to applicable law.

3. RENT

The Tenant shall pay ■28,500 per month in advance on or before the seventh day of each month. Payment shall be made by bank transfer. The Tenant is responsible for retaining proof of payment and notifying the Landlord if a transfer is returned or reversed.

4. SECURITY DEPOSIT

The Tenant shall pay ■85,500 as a refundable, interest-free security deposit, equal to three months of rent. The deposit may be used for unpaid rent, utility bills attributable to the tenancy, damage beyond ordinary wear and tear, or missing keys and inventory. The Landlord shall provide an itemised statement of deductions.

5. DEPOSIT RETURN

The Landlord shall refund the remaining deposit within twenty-one days after the Tenant vacates, returns all keys, and provides final utility readings. If final bills are pending, the Landlord may retain a reasonable estimate for those bills and refund the remainder, then settle the retained amount when actual bills arrive. Normal ageing and reasonable wear and tear are not deductible damage.

6. TENANT TERMINATION

Clause 6A: The Tenant may terminate this Agreement at any time by giving thirty days’ written notice to the Landlord. Rent remains payable through the notice period. The Tenant must allow reasonable access for handover and return all keys.

7. LANDLORD TERMINATION

Clause 7A: The Landlord may terminate this Agreement for convenience by giving sixty days’ written notice. Clause 7B: Notwithstanding Clause 7A, the Landlord may terminate this Agreement for convenience only by giving ninety days’ written notice. The Parties have not initialled either clause to indicate which notice period controls. For extraction and evaluation purposes, this is an intentional unresolved conflict; do not assume that one clause overrides the other.

8. BREACH AND CURE

Either Party may give written notice of a material breach and allow ten days to remedy it where the breach can reasonably be cured. Persistent non-payment, deliberate damage, serious nuisance, or unlawful use may constitute a material breach. Any termination or recovery of possession must follow applicable law; the Landlord may not use force or unlawfully disconnect essential services.

9. RENT INCREASE

If the Parties sign a renewal, rent shall increase by six percent from the first day of the renewed term unless they agree in writing to another amount. The rent does not automatically increase during the initial term.

10. MAINTENANCE

The Landlord shall handle structural repairs and major failures of plumbing and electrical systems not caused by the Tenant. The Tenant shall keep the Premises reasonably clean, replace consumable items, and promptly report defects. The Tenant is responsible for repair costs where damage results from negligence, misuse, or an unauthorised alteration.

11. UTILITIES

The Tenant shall pay electricity, cooking gas, water consumption, and internet charges for the period of occupancy. The Landlord shall pay property tax and building ownership assessments. Monthly common-area maintenance of ■1,800 shall be shared equally: ■900 paid by the Landlord and ■900 paid by the Tenant.

12. ALTERATIONS AND SUBLETTING

No structural alteration or permanent fixture may be installed without written consent. The Tenant shall not assign or sublet the Premises without the Landlord’s prior written approval. Ordinary guests are permitted for short visits, provided the Premises is not used as a guest house or short-stay rental.

13. INSPECTION AND ACCESS

The Landlord may inspect after giving twenty-four hours’ notice and arranging a reasonable time. In an emergency, immediate access may be necessary to prevent injury or serious property damage. The Landlord shall respect the Tenant’s privacy and shall not use inspection rights to interfere unreasonably with occupation.

14. HANDOVER

At move-in, the Parties shall record the condition of walls, flooring, windows, appliances, and sanitary fittings. At move-out, the Tenant shall remove personal belongings, return all keys, and leave the Premises broom-clean. The Parties should jointly inspect the Premises and record any disagreement about damage.

15. NOTICES AND DISPUTES

Notices shall be sent to the email addresses or physical addresses most recently confirmed by each Party, with delivery evidence retained. The Parties shall attempt good-faith discussion before commencing proceedings. Any unresolved matter may be taken to a competent forum having jurisdiction over the Premises.

16. GENERAL

This Agreement is the complete written understanding between the Parties concerning the tenancy, except for signed schedules and later written amendments. If one provision is unenforceable, the remaining provisions continue to the extent permitted by law. The Parties acknowledge that Clauses 6A, 7A, and 7B must be reviewed together because the landlord notice periods conflict.

LANDLORD _____ **TENANT** _____

Signature lines are included only to make the layout realistic. This synthetic test document is not intended for execution.